

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION**

KATHRYN COPELAND,	§	
Plaintiff,	§	Civil Action No.
v.	§	
WEINSTEIN MANAGEMENT CO., INC.;	§	
WMCI DALLAS X, LLC;	§	
LILE BENAICHA, individually and in her	§	RELATED CASE
capacity as General Counsel;	§	Copeland v. Tarrant County,
PHILADELPHIA INDEMNITY	§	No. 4:25-cv-890-O
INSURANCE COMPANY; and	§	(N.D. Tex.)
AMYE BROCHSTEIN, individually and	§	
in her capacity as claims adjuster,	§	JURY TRIAL DEMANDED
Defendants.	§	

**PLAINTIFF'S EMERGENCY APPLICATION
FOR NARROW TEMPORARY
RESTRAINING ORDER**

— Ruling Requested by 5:00 p.m. CDT, Wednesday, May 13, 2026 —

Kathryn Copeland

KATHRYN COPELAND

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Dated: May 12, 2026

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KATHRYN COPELAND,	§	
Plaintiff,	§	
v.	§	
WEINSTEIN MANAGEMENT CO.,	§	
INC.; WMCI DALLAS X, LLC;	§	
ALLISON WEINSTEIN, individually	§	
and in her capacity as Co-President;	§	Civil Action No. _____
LILE BENAICHA, individually and	§	
in her capacity as General Counsel;	§	
PHILADELPHIA INDEMNITY	§	
INSURANCE COMPANY; and	§	
AMYE BROCHSTEIN, individually	§	
and in her capacity as claims	§	
Defendants	§	

**Plaintiff's Emergency Application for Narrow Temporary
Restraining Order
— Request for Ruling Prior to 5:00 p.m. CDT, May 14, 2026 —**

Use of Generative Artificial Intelligence and Notice of ADA Accommodation

Pursuant to N.D. Tex. Local Civil Rule 7.2(f), Plaintiff discloses that a generative artificial intelligence tool (Anthropic Claude) assisted in drafting this brief. Plaintiff is a person with documented disabilities — including traumatic brain injury, mild cognitive impairment, hypermobile Ehlers-Danlos Syndrome, Mast Cell Activation Syndrome, and Postural Orthostatic Tachycardia Syndrome — that substantially limit her capacity to draft lengthy legal documents without assistive technology. Plaintiff's use of generative artificial intelligence is a reasonable

accommodation under Title II of the Americans with Disabilities Act, 42 U.S.C. § 12132, and an exercise of her right of meaningful access to courts. *See Tennessee v. Lane*, 541 U.S. 509, 522–531 (2004). Plaintiff has personally reviewed every factual assertion, legal citation, quotation, and argument contained herein and accepts personal responsibility for the contents. Plaintiff is filing contemporaneously a Motion for Appointment of Counsel pursuant to 28 U.S.C. § 1915(e)(1).

Plaintiff Kathryn Copeland, pro se, respectfully moves this Court on an emergency basis for issuance of a narrow Temporary Restraining Order under Federal Rule of Civil Procedure 65 to prevent imminent and irreparable federal civil-rights interference by Defendants in a state-court proceeding to which Defendants are not parties. Plaintiff requests a ruling on this Application prior to 5:00 p.m. CDT, Wednesday, May 13, 2026, for the reasons set forth below. In support, Plaintiff shows the Court as follows:

I. THE EMERGENCY

1. On May 6, 2026 at 11:09 a.m. CDT, Defendants filed an unauthorized nonparty "Amicus Brief" in *Kathryn Copeland v. Kelly Decker, Individually and d/b/a Kelly Decker Law Firm and Formerly Decker Pool, Jointly and Severally*, Cause No. 236-363132-25, in the 236th Judicial District Court of Tarrant County, Texas (the "Decker action"). (Ex. 23) Defendants are not parties to the Decker action

and have no claim or interest in its outcome. Their stated purpose for the filing — admitted in writing in the Sortor transmittal letter to the 141st District Clerk — is the protection of their adverse litigation position against Plaintiff in their own separate 141st District Court case. (Ex. 24)

2. On May 8, 2026, the court coordinator for the 233rd Judicial District Court (Tarrant County) advised the parties that Judge Kenneth Newell — sitting as Local Administrative Judge of Tarrant County and reviewing Plaintiff's vexatious-litigant permission question in the Decker action — directed all parties to submit all briefing for his consideration no later than 5:00 p.m. CDT on May 15, 2026. (Ex. 26) Judge Newell will rule by submission after that date. Defendants' May 6 amicus filing is among the materials Judge Newell will consider. Judge Newell is also named individually as a defendant in *Copeland v. Tarrant County, et al.*, No. 26-10389 (5th Cir.). (Ex. 27)

3. Plaintiff respectfully requests that this Court rule on this Application no later than 5:00 p.m. CDT on Wednesday, May 13, 2026. This shortened deadline is necessary to preserve Plaintiff's appellate remedies. If this Court denies the requested relief, denial of a preliminary injunction is appealable as of right under 28 U.S.C. § 1292(a)(1), and Plaintiff intends to file an emergency motion for injunction pending appeal in the United States Court of Appeals for the Fifth Circuit under Federal Rule of Appellate Procedure 8(a). The Fifth Circuit will require approximately forty-eight

hours to consider and rule on such an emergency motion. A ruling on this Application by 12:00 noon CDT Wednesday May 13 preserves the time necessary for Plaintiff to file in the Fifth Circuit on Thursday May 14 and for that Court to rule before the 5:00 p.m. CDT Friday May 15 submission deadline before Judge Newell. Without that preserved appellate window, Defendants' interfering amicus filing will be effectively presented to a state judge — who is himself a named defendant in Plaintiff's separate pending action *Copeland v. Tarrant County, et al.*, No. 26-10389 (5th Cir.) — on a Title-II-of-the-ADA permission question, with no opportunity for federal appellate review until after the harm is concrete and effectively unreviewable.

II. NARROW RELIEF REQUESTED

4. Plaintiff requests a narrow Temporary Restraining Order requiring Defendants Weinstein Management Co., Inc., WMCI Dallas X, LLC, Allison Weinstein, Lile Benaicha, Philadelphia Indemnity Insurance Company, Amye Brochstein, Esq., and any person acting in concert with them or on their behalf — including without limitation their counsel of record at Wentz & Zavarelli, L.L.P. and Higier Allen & Lautin, P.C. — to immediately cease and desist from making any further unsolicited filings, communications, or submissions in any state-court proceeding to which Plaintiff is a party, for the purpose of addressing Plaintiff's

federal civil rights, pending preliminary injunction hearing or further order of this Court.

5. This narrow relief is specifically intended to prevent Defendants from making any further submissions to Judge Newell in connection with the May 15, 2026 submission deadline in the Decker action. It does not require Defendants to take any affirmative housing, property, or financial action; it does not stay, vacate, or restrain any state-court proceeding or order; and it does not require any state court to take any action whatsoever. It restrains Defendants' party conduct only.

6. Plaintiff's broader claims for housing, property return, declaratory, and damages relief — set forth in the verified Original Complaint filed contemporaneously with this Application — will be addressed at a separately scheduled preliminary injunction hearing. The narrow relief sought here is the minimum necessary to prevent imminent irreparable harm in the limited window before Judge Newell's 5:00 p.m. Friday May 15, 2026 submission deadline.

III. FACTUAL BASIS

7. Plaintiff incorporates by reference the verified allegations of her Original Complaint, paragraphs 82–86, addressing the May 6, 2026 Decker-action amicus filing (Ex. 23) and Plaintiff's May 8, 2026 Motion to Strike. (Ex. 25) On May 10, 2026, Plaintiff served Defendants with a formal pre-suit federal civil-rights demand

letter — providing the notice and refusal-to-cure predicate for this Application. (Ex. 28)

8. The Decker action is unrelated to Defendants' apartment-management business, unrelated to the 141st District Court litigation against Plaintiff, and concerns Plaintiff's claims against an attorney who formerly served as amicus attorney for Plaintiff's minor children. Defendants have no party status, no commercial connection, no client relationship, and no asserted property or contractual stake in the Decker action.

9. Defendants' May 6 amicus brief expressly stated its purpose: to ensure that "any determination by this Court as to any purported disability of Ms. Copeland should not be construed as a determination for any other purpose" and that any accommodation granted in the Decker action would not "deny, defeat, and/or encroach on Weinstein's rights" in their separate 141st District Court case. Both stated purposes are exclusively about protecting Defendants' interests in separate litigation.

10. On May 8, 2026 at 10:31 a.m. CDT, Plaintiff filed in the Decker action a Motion to Strike the Unauthorized Amicus Brief and Notice of Federal Interference with ADA Rights, expressly invoking 42 U.S.C. § 12203(b) and 28 C.F.R. § 35.134(b). Plaintiff's filing of the May 8 Motion to Strike is protected activity for purposes of 42 U.S.C. § 3617 and 42 U.S.C. § 12203(b).

11. Defendants' counsel Michelle Sortor emailed Judge Newell's court coordinator the same day asking how to submit further materials. The coordinator responded that materials could be sent directly to her for forwarding to Judge Newell. The procedural channel for additional unauthorized submissions remains open.

IV. LEGAL STANDARD

12. A party seeking a temporary restraining order must show: (a) a substantial likelihood of success on the merits; (b) a substantial threat of irreparable injury if the injunction is not granted; (c) that the threatened injury outweighs any harm to the opposing party; and (d) that granting the injunction will not disserve the public interest. *Janvey v. Alguire*, 647 F.3d 585, 595 (5th Cir. 2011).

V. APPLICATION TO THE NARROW RELIEF SOUGHT

A. Substantial Likelihood of Success on the Merits

13. The May 6, 2026 amicus filing is the textbook circumstance contemplated by 42 U.S.C. § 3617 and 42 U.S.C. § 12203(b). Defendants are nonparty third parties to the Decker action; they have no legitimate litigation interest in that proceeding; their stated purpose is the protection of their adversarial position against Plaintiff in their own separate case; and the filing was made after Plaintiff's January 8, 2026 written statutory notice expressly citing § 12203(b) and § 3617 by name.

14. The Fifth Circuit has recognized that conduct intended to chill or impede ADA rights — not just adverse employment-style action — constitutes interference under § 12203(b). See *Strife v. Aldine Indep. Sch. Dist.*, No. 24-20269 (5th Cir. May 16, 2025). The Ninth Circuit has held that litigation conduct can constitute § 3617 interference where motivated by intent to chill protected activity, *Walker v. City of Lakewood*, 272 F.3d 1114 (9th Cir. 2001), and that Noerr-Pennington immunity does not protect objectively baseless litigation aimed at chilling protected activity, *White v. Lee*, 227 F.3d 1214 (9th Cir. 2000).

15. Defendants' May 6 amicus filing is objectively baseless under *Professional Real Estate Investors, Inc. v. Columbia Pictures Industries, Inc.*, 508 U.S. 49, 60–61 (1993). They had no standing, sought no leave to intervene under Texas Rule of Civil Procedure 60, and their stated purpose was the protection of their position in adverse litigation rather than assistance to the court. See *Neonatology Assocs., P.A. v. Comm'r*, 293 F.3d 128, 131 (3d Cir. 2002) (Alito, J.) (amicus participation appropriate only where filer's perspective genuinely aids the court, not merely to protect filer's own litigation position).

B. Substantial Threat of Irreparable Injury

16. The harm is imminent and concrete: Judge Newell's submission deadline is 5:00 p.m. CDT on May 15, 2026. Absent immediate relief, Defendants are free to make additional unsolicited submissions through the channel their counsel has

already established. Judge Newell — who is named individually as a defendant in *Copeland v. Tarrant County, et al.*, No. 26-10389 (5th Cir.) — will receive and consider those submissions on a vexatious-litigant permission question that directly affects Plaintiff's access to courts.

17. Ongoing violation of federal civil-rights statutes is irreparable harm. *Villas at Parkside Partners v. City of Farmers Branch*, 577 F. Supp. 2d 858 (N.D. Tex. 2008). The right of meaningful access to courts is a fundamental right under Title II of the ADA. *Tennessee v. Lane*, 541 U.S. 509 (2004). Loss of court access through party interference is harm that cannot be remediated by money damages.

18. The temporal urgency is structural, not Plaintiff's making. Defendants timed their amicus filing to the precise window before Judge Newell's submission deadline; the timing has weaponized the state-court calendar against Plaintiff's federally protected rights.

C. Balance of Equities

19. The harm to Plaintiff from continued interference is severe and ongoing. The harm to Defendants from being ordered not to make further unsolicited filings in proceedings to which they are not parties is zero. They have no recognized interest in those proceedings; restraining them from filing in cases where they have no party status takes nothing they are entitled to.

20. Defendants' counsel asserted in writing that the purpose of their filing was the protection of Defendants' position in their own separate adversarial litigation. Restraining filings made for that purpose does not deprive Defendants of any legitimate procedural opportunity.

D. Public Interest

21. The public has a substantial interest in enforcement of federal civil-rights statutes against well-resourced violators with actual written notice. Where, as here, a corporate defendant publicly displays the Equal Housing Opportunity logo while engaged in the conduct alleged, the public interest in vindicating ADA Title II rights of access to courts is at its zenith. *Tennessee v. Lane*, 541 U.S. at 522–531.

VI. NOTICE; SHORTENED TIME REQUEST

22. Plaintiff seeks this order with notice. Plaintiff served Defendants' co-presidents and counsel of record by email on May 10, 2026 with her pre-suit federal civil-rights demand. Plaintiff will further serve this Application, the verified Complaint, the Exhibit Index, and the proposed Order on Defendants and counsel of record by email and by Federal Express overnight contemporaneous with filing.

23. Because the structural deadline created by Judge Newell's May 15 submission window is 60 hours from the time of filing this Application, Plaintiff respectfully requests that the Court rule on this Application on shortened notice, on or before 5:00 p.m. CDT, Wednesday, May 13, 2026. To the extent Defendants do

not appear or do not respond before the requested ruling time, Plaintiff respectfully requests entry of the proposed Order without further hearing under Federal Rule of Civil Procedure 65(b)(1).

VII. BOND UNDER RULE 65(c)

24. Plaintiff is indigent, on Social Security Disability Insurance, and homeless since October 27, 2025. A contemporaneous Application to Proceed In Forma Pauperis is being filed. Plaintiff respectfully requests that any Rule 65(c) bond requirement be waived or set at a nominal amount given that the narrow relief sought imposes no cognizable financial harm on Defendants. See *Kaepa, Inc. v. Achilles Corp.*, 76 F.3d 624, 628 (5th Cir. 1996).

VIII. NO STATE-COURT INJUNCTION IS SOUGHT

25. For the avoidance of any doubt under 28 U.S.C. § 2283 (the Anti-Injunction Act): Plaintiff does not seek, and this Application does not request, any order restraining the proceedings of any state court. Plaintiff seeks only restraint of Defendants' party conduct — specifically, restraint of further unauthorized nonparty filings, communications, or submissions by Defendants and persons in concert with them in state-court matters to which Plaintiff is a party. The relief operates against the parties, not against any state-court docket. See *Sprint Communications, Inc. v. Jacobs*, 571 U.S. 69 (2013).

IX. CONCLUSION AND PRAYER

WHEREFORE, Plaintiff respectfully requests that this Court (a) issue a narrow Temporary Restraining Order in the form of the proposed Order submitted herewith on or before 5:00 p.m. CDT, Wednesday, May 13, 2026; (b) set a hearing on the Preliminary Injunction at the Court's earliest convenience; and (c) grant such other and further relief as justice requires.

Respectfully Submitted,



KATHRYN COPELAND

Pro Se Plaintiff

State Bar No. 24086056

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Dated: May 12, 2026

VERIFICATION

I, Kathryn Copeland, declare under penalty of perjury pursuant to 28 U.S.C. § 1746 that the foregoing is true and correct to the best of my knowledge, information, and belief.



KATHRYN COPELAND

SERVICE OF PROCESS AND RULE 65(B)(1) NOTICE EFFORTS

Plaintiff is providing notice of this Application and the contemporaneously filed Verified Complaint to Defendants and counsel of record through the following channels, contemporaneous with electronic filing: (a) email service to Defendants' co-presidents Allison Weinstein and Ivan Jecklin at publicly listed Weinstein Properties addresses (WP@weinsteinproperties.com); (b) email service to General Counsel Lile Benaicha; (c) email service to Senior Claims Specialist Amye Brochstein, Esq. (amye.brochstein@phly.com); (d) email service to Wentz & Zavarelli, L.L.P. (Glynis Zavarelli, gzavarelli@wandzlaw.com; Michelle Sortor, msortor@wandzlaw.com); and (e) email service to Higier Allen & Lautin, P.C. (Roberto Rodriguez, rhenderson@higierallen.com, rrodriguez@higierallen.com). Plaintiff is also dispatching Federal Express overnight delivery to the principal places of business of the corporate Defendants and to counsel of record. Plaintiff previously served Defendants and counsel of record by email on May 10, 2026 with a formal pre-suit federal civil-rights demand letter incorporating the substance of the claims pleaded herein and the specific relief now sought. Pursuant to Fed. R. Civ. P. 65(b)(1)(B), Plaintiff certifies that she has made and continues to make good-faith efforts to give notice to Defendants of this Application; to the extent any Defendant has not yet been served with this Application at the time of the Court's ruling, the structural exigencies described above (Judge Newell's 5:00 p.m. CDT, May 15, 2026

submission deadline) require ruling before service can be perfected on all Defendants.



KATHRYN COPELAND

CERTIFICATE OF CONFERENCE

Pursuant to N.D. Tex. Local Civil Rule 7.1(b)(3), Plaintiff certifies that a conference was not possible because Defendants have not yet been served with the Verified Complaint and have not yet appeared in this action. Plaintiff has nevertheless given Defendants notice of the substance of the relief requested through the May 10, 2026 pre-suit federal civil-rights demand letter, and Plaintiff is providing contemporaneous notice of this Application as set forth above. Plaintiff presumes the Application is opposed.



KATHRYN COPELAND